EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 27921/07
SINDICATUL LIBER SOLECTRON
against Romania

The European Court of Human Rights (Third Section), sitting on 20 January 2015 as a Committee composed of:

Luis López Guerra, *President,*
Johannes Silvis,
Valeriu Griţco, *judges,*
and Marialena Tsirli, *Section Deputy Registrar,*

Having regard to the above appl cation lodged on 13 June 2007,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

THE FACTS

1. The applicant, Sindicatul Liber Solectron, is an independent Romanian trade union set up within the S.C. Solectron S.R.L. company and registered in the Register of Legal Entities kept by the Timişoara Court of First Instance. It was represented before the Court by its trade union leader, Mr L. Manea.

2. The Romanian Government ("the Government") were represented by their Agent, Mr R.-H. Radu, from the Ministry of Foreign Affairs.

A. The circumstances of the case

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. On 10 April 2006 the applicant lodged an application with the Timişoara Court of First Instance seeking recognition of its right of representation at company level.

5. On 26 April 2006 the Timişoara Court of First Instance dismissed that request. The court gave a grammatical interpretation of the relevant legal provisions and concluded that Article 18 § 3 of Law no. 143/1997 had introduced an additional criterion for representation to those provided for in Article 17 § 1 (c) of Law no. 130/1996, not an alternative one. The court acknowledged that the applicant had legal status and was affiliated to a branch-representative trade union organisation. However, since it only had eighty members out of 2,234 company employees, the court ruled that the applicant had not satisfied all three cumulative criteria required for representation.

6. The applicant appealed, arguing that Article 18 § 3 had laid down two alternative requirements for representation.

7. On 22 January 2007 the Sibiu County Court, by a final decision, dismissed that appeal, considering the interpretation given by the lower court as being logical and grammatically correct.

8. On 21 January 2008 the plenary of the High Court of Cassation and Justice ("the HCCJ") delivered a judgment expressing a uniform interpretation and application of Article 17 § 1 (c) in conjunction with Article 18 § 3 of Law no. 130/1996 (see paragraph 13 below).

9. In their written observations submitted with the Court, the Government informed the Court that following the delivery by the HCCJ of its decision of 21 January 2008, the applicant had lodged a new application with the Timişoara Court of First Instance seeking recognition of its right of representation at company level.

10. On 28 January 2009 the Timişoara Court of First Instance allowed its application. The court followed the interpretation given by the HCCJ in its appeal on points of law, binding for all the courts at lower level and noted that the applicant met all the legal requirements provided by law. The judgment became final on 13 May 2009.

B. Relevant domestic law and practice

11. Article 17 § 1 (c) of Law no. 130 of 16 October 1996 on collective labour agreements ("Law no. 130/1996"), as in force at the material time, provided that, in negotiations regarding collective labour agreements, at company level, should be attended by a trade union organisation which met cumulatively the following two conditions: had legal status as a trade union organisation and its membership represented at least one third of the total number of employees.

12. Law no. 143 of 24 July 1997 supplemented Law no. 130/1996. Among others, it introduced Article 18 § 3, which read as follows:

> "Trade union organisations within a company are representative if they comply with the conditions laid down in Article 17 § 1 (c), and also if are affiliated to a branch-representative trade union organisation."

13. Noting the divergent case-law concerning the interpretation and application of Articles 17 § 1 (c) and 18 § 3 of Law no. 130/1996 republished, the HCCJ delivered a judgment for the uniform interpretation of these articles.

COMPLAINT

14. The applicant complained under Article 11 of the Convention that in spite of the fact that it was affiliated to a branch-representative trade union organisation, the domestic courts had denied it the right to represent its members at company level and thus to defend their rights and interests.

THE LAW

15. In their observations with the Court, the Government raised a preliminary objection of inadmissibility of the application, arguing that in their view the applicant had lost its victim status since it had obtained the recognition of its right to represent its members at company level by a court decision which became final on 13 May 2009.

16. The Government also drew attention to the fact that the applicant had failed to inform the Court of this development. In this respect, they requested the Court to declare the application inadmissible on the ground of abuse of the right of petition.

17. The applicant did not submit any observations in this respect.

18. The Court will first examine whether the applicant's conduct could be considered an abuse of the right of application.

19. The Court reiterates that an application may be rejected as abusive under Article 35 § 3 of the Convention if, among other reasons, it was knowingly based on untrue facts (see *Vasilevskiy v. Latvia* (dec.), no. 73485/01, 10 January 2012, *Keretchashvili v. Georgia* (dec.), no. 5667/02, 2 May 2006 and *Rehak v. Czech Republic* (dec.), no. 67208/01, 18 May 2004). Incomplete and therefore misleading information may also amount to an abuse of the right of application, especially if the information concerns the very core of the case and no sufficient explanation is given for the failure to disclose that information (see *Khvichia v. Georgia* (dec.), no. 26446/06, 23 June 2009; *Bekauri v. Georgia* (preliminary objection), no. 14102/02, § 24, 10 April 2012 and *Alboreo v. France* (dec.), no. 56022/10, 15 May 2012). The same applies if new, important developments have occurred during the proceedings before the Court and where, despite being expressly required to do so by Rule 47 § 7 (former Rule 47 § 6) of the Rules of Court, the applicant has failed to disclose that

information to the Court, thereby preventing it from ruling on the case in full knowledge of the facts (see *Gross v. Switzerland* [GC], no. 67810/10, § 28, 30 September 2014).

20. Turning to the circumstances of the instant case, the Court notes that although initially the application lodged by the applicant seeking to obtain the recognition of its right to represent its members at company level had been dismissed, a similar application had been subsequently allowed by the same court.

21. The Court notes that although the favorable court decision became final on 13 May 2009, the applicant failed to mention this fact after the lodging of its application and before its communication to the respondent Government on 12 January 2010.

22. The Court further observes that the applicant did not provide any plausible explanation for the failure to submit this information, which in its opinion relates to the very core of the subject matter of the present application.

23. Having regard to the importance of the information at issue for the proper determination of the present case, the Court upholds the Government's preliminary objection that the applicant's conduct constituted an abuse of the right of application within the meaning of Article 35 § 3 (a) of the Convention.

24. In view of the above considerations, the Court considers that it is not necessary to examine the objection concerning the loss by the applicant of its victim status.

25. Therefore the application must be declared inadmissible as a whole as an abuse of the right to application pursuant to Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 12 February 2015.

Marialena Tsirli
Deputy Registrar

Luis López Guerra
President